

**Draft for exact-file review**

Proposed language. Accepted source facts retain their original status. No execution, filing, payment or clearance is established by this edition.

Advisory master services agreement and matter schedules

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1. Master professional services agreement

Sable Harbor, LLC (SHI), the accepted Delaware LLC parent, is the proposed provider operating under the descriptive business name Sable Harbor Advisory. The client legal party shall be identified in the accepted matter schedule. The provider identity is established by the entity record; client identity, authorized signatory, execution date and client commitment are not established by this draft. Advisory is a business line unless separate formation is expressly accepted; this template does not create a subsidiary. The parties shall perform only an accepted statement of work, or SOW, incorporating this agreement and any applicable data, outcome, transfer and product schedules.

Proposed precedence is an expressly signed deviation identifying the affected clause, then the SOW for matter-specific scope and economics, then this agreement and its incorporated schedules. Purchase-order boilerplate, a website update or a client instruction shall not silently replace negotiated terms. An unresolved conflict concerning data rights, safety or professional independence suspends the affected activity pending written resolution. No general scope description permits Advisory to assume client operating authority or deliver a predetermined professional conclusion.

2. Services and professional responsibility

Advisory shall perform the agreed services with professional care appropriate to the accepted problem, evidence and risk classification. Deliverables shall distinguish supported facts, assumptions, uncertainty and unresolved sources. Advisory does not guarantee a regulator response, transaction outcome, market condition or management decision. A contracted measurable outcome must be defined in the outcome schedule; it cannot be used to purchase a favorable finding or suppress adverse evidence.

The client retains its decisions, implementation responsibilities and site operating authority unless a separate explicit instrument establishes otherwise. Technical access or recommendations do not appoint Advisory as mine operator, railway commander, licensed engineer or client management. Each party shall stop activity presenting an unlawful or unsafe instruction within its responsibility and promptly notify the accountable counterpart. Approved specialists may contribute, but Advisory remains accountable for its contracted integration, review and transfer obligations.

3. Client dependencies and personnel

The client shall provide data it is authorized to supply, appropriate personnel access, a decision owner, safe site arrangements and the dependencies accepted in the SOW. Material source limitations shall be recorded when discovered. The parties shall assess their effect on timing, evidence sufficiency and price rather than certify unsupported success. Advisory shall disclose material subcontractors as required and impose purpose-limited access, confidentiality, security, IP and conflict obligations. Expert contributions shall retain identity, qualification, date, relied-upon statements and limitations in the matter record.

Personnel substitutions shall preserve the agreed competence and review coverage. A named role does not guarantee unrestricted access to an individual or protected systems. Conflicts shall be assessed before work and on material change; an unresolved conflict may require recusal, separation of work or termination. Neither party may condition a fee discount or acceptance on bypassing review or changing an independent conclusion.

4. Fees, invoices and changes

The SOW shall separate committed professional fee, variable fee, Atlas subscription, implementation, metered third-party usage, managed support, travel and taxes. The normal \$150,000 professional minimum is a source commercial threshold, not an invoice issued by this template. An exception requires the recorded approved rationale. Ordinary internal compute and routine tooling are delivery costs unless an accepted separately metered service says otherwise. Extraordinary expenses require advance agreement where practical and support for the amount charged.

Committed fees shall be invoiced on the accepted milestone or fixed monthly schedule. Variable fees shall be invoiced only after Value Office certification and contractual dispute procedures. Payment due dates, currency and remittance instructions require completion in the SOW; no bank instruction is invented here. A disputed line shall identify its basis while undisputed amounts remain separately payable under accepted terms. Proposed scope changes require a written description of affected problem, data perimeter, authority, metric, timeline, transfer or dependency and the corresponding fee effect. Discoveries within the accepted problem are not automatically chargeable extras.

5. SOW execution schedule

Each SOW shall assign one primary class: Measurable Value, Capability, Decision or Managed Continuity. A hybrid shall separately price and govern each component. The following schedule constitutes required matter-specific terms; unfilled fields mean no matter has been ordered.

SOW field	Operative completion requirement
Parties and matter ID	Verified contracting entities and stable matter identifier; no client presently assigned
Question and perimeter	Specific decision, operating problem or capability; included and excluded units, systems and locations
Deliverables	Identified outputs, usable format, review criteria, owner and delivery milestone
Authority	Named role accepting instructions and explicit limits on decisions, site work and system actions
Dependencies	Client data, access, personnel, implementation and safety prerequisites with due milestones
Economics	Committed fee, approved variable mechanics, product fees, expenses, currency and payment schedule
Evidence	Source systems, rights, provenance, limitations and required review
Acceptance	Objective tests, reviewer, response period, defect treatment and transfer requirements
Change and exit	Authorized change route, stop conditions, accrued fees and orderly handover

The parties shall not begin a consequential production or field activity while its authority or safety prerequisite remains blank. An exploratory SOW may expressly limit work to discovery and state that no operational outcome is promised.

6. Outcome schedule for measurable value

The parties shall lock baseline amount and date, metric definitions, source systems, normalization, exclusions, attribution method, client dependencies, measurement window, payout curve and cap before relying on variable economics. “Percentage of savings” without those terms is insufficient. Value Office shall retain the calculation and supporting versions and distinguish measured improvement from unrelated market or enterprise changes.

The source working default is 60% committed and 40% variable professional fee, with approved variation between 40/60 and 80/20. The source payout curve pays no variable fee below 70% achievement, 25% at 70%, 60% at 85%, 100% at target and up to 125% at 120% or above where contracted; interpolation is linear between agreed points. This template selects no client target, fee or actual outcome. The accepted schedule must expressly adopt or vary the curve and cap before any calculation is due.

A restatement shall identify changed evidence, affected baseline or period and the resulting fee correction. Metric disputes first receive the proposed executive escalation and, if agreed in the SOW, independent expert determination limited to the disputed measurement. Legal disputes follow the separately completed forum clause. Neither route authorizes alteration of professional findings as settlement consideration.

7. Data protection and confidentiality addendum

Each party shall use confidential information only for the contracted purpose, restrict disclosure to authorized personnel or advisers with corresponding duties and protect it during storage and transfer. Compelled disclosure shall be notified where lawful and limited to required material. No residual-knowledge permission authorizes intentional reuse of identifiable client secrets. Protected J2 information and another client's confidential material may not enter the engagement merely because an employee can access them.

Before processing personal, regulated or sensitive information, the data schedule shall identify the parties' applicable roles, subjects and data categories, purpose, processing activities, locations, subprocessors, security measures, retention and deletion, incident channel and required cross-border mechanism. Those legally material particulars remain unresolved until the client and jurisdiction are known. Advisory shall process only documented authorized purposes and shall not convert client data into unrestricted training material. New material subprocessor use shall follow the agreed notice and objection process before access.

Proposed incident handling requires prompt preliminary notice on awareness of material suspected compromise, preservation of evidence, known scope, containment actions and a next-update time; the precise contractual deadline must be agreed in the data schedule. Uncertainty is reported rather than used to delay all notice. Assistance with lawful data-subject or regulatory requests shall remain within verified authority. Retention shall distinguish client-owned source records, required professional records, legal holds and deletable working copies; a deletion certificate must disclose exceptions instead of asserting held material was destroyed.

8. Intellectual property and product separation

The transfer schedule shall classify every material deliverable under the source four-class model. Class A includes agreed client-owned foreground, client data, client-specific factual models and transferable client-specific procedures. Class B consists of licensed Sable Harbor capability, supplied only under the stated license. Class C remains reserved professional IP, including professional-plane orchestration, internal reviewer tools and protected operating knowledge. Class D is restricted third-party or institutional material with no transfer permission under this agreement.

Client rights in accepted Class A deliverables shall be stated expressly; background IP does not become assigned because embedded in a deliverable. Class B terms shall state users, permitted use, duration, dependencies and post-termination rights. Class C or D components shall not be hidden in a package supposedly delivered as client-owned. Generalized product improvements may be retained only where rights and confidentiality permit; copied client data, labels, prompts or secrets do not become generalized simply by changing a name.

Atlas licensing shall remain separately identifiable by edition, tenant, authorized users, connectors, third-party service terms, security, support and export rights. This Advisory MSA does not replace the product license or grant professional-plane access. A client may retain licensed Atlas capability after Advisory exits only on the applicable license terms, without an implied obligation to purchase more professional services.

9. Capability acceptance and transfer schedule

For a Capability Matter, Advisory shall deliver the agreed functioning state, training, runbooks, tests, monitoring, stop conditions and support path. A proposed acceptance submission shall list artifact IDs and versions, classifications, dependencies, runtime assumptions, permissions, test evidence, unresolved defects and the client owner. Hidden calls to Sable Harbor-only memory or credentials are prohibited unless the continuing dependency is explicitly licensed and disclosed.

The source milestone pattern is 20% mobilization/design, 30% workflow build, 25% technical implementation/test, 15% supervised client operation and 10% final transfer and independent acceptance. A completed SOW may adopt or replace that pattern; this template creates no billed milestone. The client shall review against the stated tests and identify specific defects. Silence is not deemed acceptance under this proposed form. Advisory shall correct in-scope nonconformities or obtain an explicit limitation acceptance; material changes use change control.

The Transfer Owner shall issue a certificate listing Class A delivery, Class B licenses, reserved components, third-party dependencies, exports, training, test results, open defects, support and retention/deletion disposition. A certificate remains unsigned and incomplete until supported. Exit shall not be obstructed by withholding required client-owned instructions merely to preserve recurring revenue.

10. Risk, remedies and termination

The liability schedule shall state an aggregate cap tied to accepted fees or another approved risk basis, any special confidentiality/data/IP treatment, applicable exclusions and actual insurance requirements. Values remain unfilled pending risk approval; this template does not silently impose unlimited liability or claim coverage exists. Proposed indemnities are confined to controllable third-party IP, defined security breach or misconduct risks as negotiated. They exclude the client's own operating decisions, unsafe implementation, undisclosed source defects and unauthorized modifications to the extent attributable to those causes.

Either party may seek correction of material breach under an agreed notice and cure period. Advisory may immediately stop affected work for unsafe or unlawful requests, demands for falsification, material confidentiality/security danger or unresolved disqualifying conflict. Nonpayment and dependency failures follow the agreed escalation and suspension provisions, with disputed and undisputed amounts identified. Termination shall reconcile accepted work, accrued contractual fees, approved expenses, client exports, licensed dependencies and return/deletion obligations. It does not create an unearned success fee.

Public use of client name, logo, case details or testimonials requires the necessary explicit consent. Notices, governing law, forum, signatories, client legal identity and all matter-specific financial schedules remain completion fields. Signatures shall identify the accepted version and incorporated schedules. No customer, SOW, product tenant, execution, completed service or payment is established by this proposed form.

Source record and approval boundary

- [industrial/corporate/LEGAL_STRUCTURE_AND_FORMATION.md](#)
- [docs/advisory/LEGAL_AND_CONTRACTING_TERM_SHEET.md](#)
- [docs/advisory/COMMERCIAL_CONTRACTING_AND_PRICING_STANDARD.md](#)
- [docs/advisory/IP_DATA_AND_METHOD_TRANSFER_STANDARD.md](#)
- [docs/advisory/EXPERT_NETWORK_AND_THIRD_PARTY_STANDARD.md](#)

No signatures, payments, provider acceptance or external filing are established by this draft. Its proposed clauses become neither accepted canon nor effective obligations through rendering, indexing or validation. Approval must identify the exact instrument and any completed schedules.